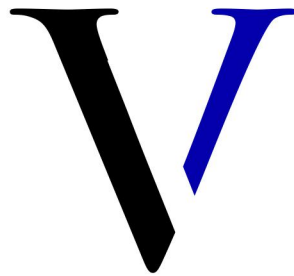


CPC-CONSTITUTION OF INDIA and PROFESSIONAL ETHICS

Course Code:-21CIP37/47



**VTU
Updates**

CONSTITUTION OF INDIA

21CIP37/47

CIE Marks 50, SEE Marks 50, Credits 01, Exam Hours 02hrs

MODULE -1

Introduction to Indian Constitution:

Definition of Constitution, Necessity of the Constitution, Societies before and after the Constitution adoption. Introduction to the Indian constitution, The Making of the Constitution, The Role of the Constituent Assembly - Preamble and Salient features of the Constitution.

1. What is Constitution?

Constitution is fundamentally a body of rules and regulations or a collection of principles, which may be written or unwritten serving as basic frame work of political society”

The Constitution which is referred to as “The fundamental law of the land, Rule of the State, Instrument of Government and corner stone of a nation”.

DEFINITION OF CONSTITUTION,

1. Explain the definition of constitution by different scholars: –

Garfield Gettel: “The Fundamental principles that determine the form of a state is called the Constitution”

George Jellink: “ A Constitution is a body of juridical rules which determine the supreme organ of the state, which prescribes their mode of creations, their mutual relations, their sphere of action and finally the fundamental place of each of them in their relation to the state”.

Aristotle: – constitution is the way by which all citizens or constituent parts of the state are organized in relation to each other

Sir James Mackintosh: – By the state constitution, a body of written or unwritten fundamental laws means those which regulate the most important rights of the High Magistrate which are the most essential privileges of subjects.

George Corne well Lewis: –“system and distribution of sovereign power as community or government”.

Leacock: – According to him, “Constitution is the form of government”.

Austin: – stated the definition of constitution as, “It fixes the structure of supreme government.”

Woolsey : “ Constitution is the collection of principles according to which the powers of government , the rights of the governed and relation between the two are adjusted”.

Lord Bryce: A constitution is “ the aggregate of laws and customs under which the life of the state goes on”. •

MacIver: A constitution is “the law which governs the state”.

1. Which law is determines political structure of the country?

Ans: Constitution of the country

1-(a). Which is the Fundamental and supreme law of the country is..

Ans:- Constitution of India

2. Which is the biggest written constitution in the world?

Ans: Indian Constitution

3. A) In which year East India Company established in India?

Ans: 1600

4. Which is the oldest and smallest constitution in the world?

Ans: America US

5. Morley-Minto reforms OR Indian council act-1909 introduced

Ans:-a) Elections introduced for Legislative council at Central

b) Majority was maintained only British

6. Montagu -Chelmsford report OR Enactment of Govt act-1919 submitted

Ans:- a) Elections conducted for both Upper and Lower house

b) Increased the Indian association in every branch

c) Assured dual Government to India (Central & Provincial)

8. When Symons commission-1930, gave the report to British Govt?

Ans: A Round table conference has been arranged in 1930.

9. Which report was recommends Round Table Conference?

Ans : Symon commission report in 1930

9-A. In which year Government of India act prepared

Ans: 1935-Act and introduced.....

a) Bi-cameral system of Government was introduced

b) Divided the powers in Central & Provincial

c) Reserve Bank of India Established.

10. Which year Quit India movement was held?

Ans: 1942.. under the leadership of Mahatma Gandhiji

11. Under which plan the constitution Assembly of India constituted?

Ans. Cabinet mission plan

12. When was the constituent Assembly convened?

Ans: 1946

13. When was the first meeting OR session of the constituent Assembly held?

Ans: 9 December 1946

14. What was the main role of the Constituent Assembly?

Ans: To frame a constitution with adult franchise system

15. Who was the permanent Chairman for Constituent Assembly of India?

Ans: Dr. Babu Rajendra Prasad.

16. Who was the interim Chairman for Constituent Assembly?

Ans: Mr. Sachidananda sinha {elected as provincial president}

17. Who is the First & last Governor general (Viceroy) Pre India & after independence?

Ans: Lord Mount Batten.

18. How many members are in the Constituent Assembly?

Ans: 389 members, (296 from British representatives and 93 from Indian native states)

18. The Provincial Assembly were to divided in two groups are

Ans: General and Muslim.

18-A How many seats won by the Muslim League in the Constituent Assembly election

Ans:- 73

18-B. The strength of the Constituent Assembly, after the withdrawal of the Muslim League was

Ans:-299 Members

19. How many Constitution committees appointed?

Ans: 15 Constitution committees appointed

20. When drafting Committee was appointed?

Ans: 29 Aug 1947

21. Who was the Chairman for drafting committee?

Ans: Dr B R Ambedkar.

22. How many members are in the drafting committee exclude chairman?

Ans: 6 members.

23. Who was the Advisor to the drafting committee?

Ans: Mr .B N Rao

24. How many days took to prepare Indian constitution?.

Ans: 2 years, 11 months, 18 days.

25. How many articles and schedules in the first draft?

Ans: 243 Articles and 13 schedules.

26. How many Articles and schedules in final draft of constitution?

Ans: 395 Articles & 8 schedules in the final draft.

27. When Indian constitution adopted?

Ans: 26 November 1949

28. When Indian constitution came in to force OR put in to effect?

Ans: 26 January 1950.

29. How many Articles, Schedules and parts in the Constitution at present?

Ans: 446 Articles, 12 schedules and 24 parts

30. Who was the first Prime minister in the union of India?

Ans: Jawaharlal Nehru

31. What are the Concepts borrowed/ adopted from **US constitution**?

Ans: The following concepts are adopted from **US Constitution**: -

- a) Fundamental Rights,
- b) Concept of Supreme Court,
- c) President is chief commander for Armed force
- d) Vice President is Ex-officio Chairman to Rajyasaba,
- e) Removal method (Impeachment) of President, Governor, Judges of Supreme and High Court,
- f) Independent judiciary,
- g) Preamble of the Constitution.
- h) Written Constitution method,

32. From which Constitution Fundamental Duties are adopted?

Ans: RUSSIA Constitution

33. From Which Constitution Emergency Provisions are adopted?

Ans: German Constitution.

34. What are the concepts adopted from British constitution?

- Ans:
- a) Single citizenship,
 - b) Writ petitions

- c) Parliamentary system of Government
- d) Minister's responsibility to Legislatures.

35. In which year First General Elections held in India?

Ans: 1952

36. Division of powers from central and state the lists are

Ans: Union list (97 subjects) , State list (66 subjects) & Concurrent list (47 Subjects).

PREAMBLE OF INDIAN CONSTITUTION

36. Who prepared the Objective resolution for Preamble of the Indian Constitution and when?

Ans: Jawaharlal in 1946.

37. In which amendment did the Preamble amended?

Ans: 42nd amendment-1976

38. How many times Preamble of Indian Constitution was amended so far?

Ans: Only one time.

40. In which amendment new words added the Preamble and what are the new words?

Ans: 42nd amendment-1976. "Socialist & Secular" "Unity & Integrity"

41. What is First word of the Preamble?

Ans . "WE"

42. What is the preface / Index for Indian constitution?

Ans: Preamble

42-A. Fraternity means

Ans: -Spirit and Brotherhood

42-B. What was the exact Constitutional status (in the Preamble) on January-1950

Ans: SOVERIGN, DEMOCRATIC & REPUBLIC.

PREAMBLE

"We the people of India, having solemnly resolved to constitute India into a Sovereign, Social, Secular, Democratic, Republic and to secure to all its citizens:

Justice: Social, economic and political

Liberty: of thought, expression, belief, faith and worship,

Equality:- of status and opportunity; and to promote among them all ;

Fraternity:- assuring the dignity of the individual and the Unity and integrity of the Nation:

In our Constitution Assembly this 26th November 1949, do hereby solemnly adopt, enact and give to ourselves this constitution.

SALIENT FEATURES OF INDIAN CONSTITUTION

43. Write the salient features of Indian Constitution?

- 1) Written Constitution (Concept Adopted from USA)
- 2) Partly rigid & partly flexible
- 3) Lengthiest & bulkiest Constitution,
- 4) Parliamentary form of Govt. (Britain)
- 5) Secular State,

- 6) Fundamental Rights (USA) and Fundamental Duties. (RUSSIA)
- 7) Single citizenship (CANADA)
- 8) Directive Principles of State Policies,
- 9) Independent Judiciary and Judicial Review (USA)
- 10) Emergency provisions, (GERMANY)

MODULE -2

Fundamental Rights and its Restriction and limitations in different Complex Situations.

Directive Principles of State Policy (DPSP) and its present relevance in our society with examples.

Fundamental Duties and its Scope and significance in Nation building

FUNDAMENTAL RIGHTS.PART-III

44. Which part of the Constitution deals with Fundamental Rights?

Ans: Part-III

44-A. Main objective of the Fundamental Rights is

Ans: Ensure individual liberty

45. What are articles that deal with Fundamental rights?

Ans: Article 14 to Article 32

46.. Write the Characteristics of Fundamental Rights?

Ans: Fundamental Rights are....

- a) Fundamental Rights are Originally generated during Framing of Constitution
- b) Fundamental Rights are Legally enforceable and justiciable
- c) Fundamental rights Can be altered
- d) Fundamental rights can be amended
- e) Some Fundamental rights available Foreigners also.
- f) Fundamental rights are not absolute rights
- g) Fundamental rights Can be altered
- h) Fundamental Rights Cannot be Deleted by the Parliament.
- i) Fundamental Rights can be suspended by the President during National emergency.

47. Which Fundamental Right Or Which Articles cannot be suspended during national emergency?

Ans: Article 20 & 21

48. What are the restrictions / limitations on Fundamental Rights?

Ans : a) Fundamental Rights can be suspended during National emergency

- b) Any citizen should not carry illegal business
- c) Citizen not to practice any illegal profession
- d) Citizens should not violate the Public law

49. Which Fundamental right was deleted OR abolished and when?

Ans: “ Right property “ was deleted during 44th amendment 1978.

50.. Which Article is “heart & Soul of the citizens” according to DR. B R Ambedkar.?

Ans: Article 32 – Right to Constitutional Remedies.

51. Which Article deals with abolishes of Untouchability?

Ans: Article-17 (All are equal before the law, not to discriminate any citizen on the grounds of caste, race, gender or birth place and not to restrict any citizens to use public wells, tanks, roads, temple.

52. Write the list of 6 Fundamental rights with articles?

Ans: 1. **Right to equality. -Article 14 to 18.**

2. **Right to Freedom. -Article 19 to 22**

3. **The Right against Exploitation.- Article 23 & 24,**

4. **The Right to Freedom of religion.- Article 25 to 28.**

5. **The Cultural & Educational rights.- Article 29 & 30**

6. **The Right to Constitutional Remedies. – Article 32.**

53. Define the meaning of Right to equality Article 14-18 ?

Ans: a) **Article-14**-All are equal before the law, not to discriminate any citizen on the grounds of caste, race, gender or birth place

b). Article-15- Not to discriminate any citizens to use public wells, tanks, roads.

c) Article-16- Equal opportunities should be given to all citizens in employment/appointment

d) Article-17. Prohibition of Untouchability

e) Article -18. Citizens of India are prohibited from accepting titles from Foreign states without the Permission of the President of India

54. Define the Right to Freedom Article 19-22?

Ans: As per Article-19

a) Freedom of speech and expression

b) Freedom to assemble peacefully and without arms

c) Freedom form Unions & Associations

d) Freedom to move through the territory of India

e) Freedom to reside and settle in any part of India

f) Freedom to acquire, hold and dispose of property

g) Freedom to practice any profession OR to carry on any occupation, trade,

B) Article 20:- No Person shall be prosecuted and punished for the same offence twice”

C) Article 21:- Everyone has a right to life. Even committing suicide is an offence, punishable under law. It cannot be suspended by the President during Emergency.

D) Article 22:- Every person who is arrested and detained by Police must be produced before the Magistrate Within 24 hours.

55. Explain the Rights against Exploitation-Article 23 & 24?

Ans:Article 23:- Prohibited the “Traffic in human beings” or Forced labor.

Article 24 “No children below the age of 14 years shall be employed at any work in factory or house

56. What is Article 29 & 30 Cultural & educational Rights?

Ans; Article 29: Citizen can protect & preserve their Language (Tulu,Kodava, Konkani

Article-30: Citizens shall have the Rights to establish and administer Educational Institutions

57. How many Writ petitions are there under Article 32.

Ans : Five Writ petitions.

58.. What is the Remedy for violation / encroachment of Fundamental rights?

Ans: Filing of Writ petition in Supreme Court as per Article-32 and in High court as per article-226

59.. Name the Five types of Writ Petitions?

A) **Writ of habeas Corpus**, (Meaning have the person physically before the court.)

B) **Writ of Mandamus**, (Meaning-Command or Order by Superior Court to a lower Court)

C) **Writ of Prohibition**. (Issued against Lower court From Higher Court)

D) **Writ of Certiorari**. (Higher court may Issue order only overstepping by lower court in a case)

E) **Writ of Quo-Warranto** (restrain a person from illegally holding an office to which he is not entitled.

60. Where citizen can file Writ petitions for violation of Fundamental rights?

Ans : Supreme Court (Article.32) OR High Court (Article 226)

61. When the Supreme Court & High Court may issue the issue Writs?

Ans: For the re-enforcement or violation of Fundamental rights.

62. An arrested Person should be produced before any nearest magistrate or

Court within...hrs Ans : 24 hours.(Article 22) Who can suspend the

Fundamental rights during the National emergency? Ans: President of India.

63. Who is the head of the Constitution?

Ans : President of India.

64. Fundamental rights concept borrowed from

Ans: US Constitution.

65. Which are the three organs of the Government?

Ans: Legislature, Executive, Judiciary.

67.. What is the meaning of secular?

Ans: No State religion as per the Constitution, “Any Religious Citizen may stay in the Country”

68.The Ultimate source of authority of India is

Ans : People

69. Which Article/ Fundamental Right deals with Abolition of Untouchability?

Ans: Article 17

70.Which Article/ Fundamental Right deals with Abolition of Tittles?

Ans: Article 18

71. Who are the Protector and Guarantor of Fundamental Rights?

Ans : Supreme Court.

72. Is some of the Fundamental rights are applicable to Foreigners ?

Ans: YES Some Fundamental rights are applicable Foreigners.

PART-IV DIRECTIVE PRINCIPLES OF STATE POLICIES.

73. Which part of the Constitution deals with Directive Principles of State Policies (DPSP)

Ans: Part IV of Indian Constitution

74.. DPSP’s are cover

Ans: Vast area

75..What are the Articles describes about Directive Principles of State Policies?

Ans: Articles 36 to 51

76. Directive principles of State Policies are Rights?

Ans: Social Rights.

77.Directive principles of State Policies are.....

Ans: Not Mandatory.

78.Directive principles of State Policies are.....

Ans: Not Justiciable

79.Directive principles of State Policies are.....

Ans: Legaly not enforceable.

69.What is the main goal/ aim for inclusion of Directive principles of State Policies

Ans: To achieve welfare states.

80. Write the Classification of Directive Principles of state policies?

Ans: 1) Socialist Principles. 2) Gandhi Principles 3) Liberal Principles 4) General Principles.

81. Write any four Socialist Principles?

Ans : a) Article-39 Provision for adequate livelihood to all the citizens.

b) Article-39 Protection of Youth & Children from exploitation

c) Article-39 Securing equitable distribution of material resources of the country for common good.

d) Article-46 Taking proper care of the weaker section of the Society

82. Give four examples for Gandhian Principles Article 40 to 48?

Ans: a) Article-40 Organizing Village panchayath, to work as units

b) Article-46 Promotion of cottage Industries on Individual basis

c) Article-47 Prohibition on consumption of intoxicating Alcohol and Drugs

d) Article-48 Prohibition of Cattle slaughter, Organize Animal Husbandry & Agriculture.

83. Write about Liberal Principles.

Ans: a) Article-44 Securing Uniform Civil code,

b) Article -45 Provide free and compulsory Education to the Children

c) Provision for free legal Aid service to the poor Family who need.

d) Article-50 Separate the Judiciary from legislative & executive.

PART IV- FUNDAMENTAL DUTIES Article 51-A

84. Which amendment act Fundamental duties are added to the constitution?

Ans: 42nd Amendment-1976

85. Which part & Article Fundamental Duties are added to constitution?

Ans: Part- IV –A Article 51 (A)

86. Write the 11 Fundamental Duties?

Ans: Citizen of India should.....

1. Respect the National Flag & Anthem, Abide by the Constitution and respect its ideals

2. Cherish & follow the noble ideas of Freedom fighter, which inspired national struggle.

3. Uphold & protect the Sovereignty, Unity & Integrity of India.

4. Defend the country and render National service when called upon

5. Promote harmony & spirit of common brotherhood rising above religious, Linguistic.

6. Value and preserve rich heritage of our composite culture

7. Protect natural Environment, Wildlife, forests, Lakes, rivers, monuments etc.

8. Develop Scientific Temper, Humanism & spirit of enquiry & reform

9. Avoid Violence & Safeguard Public property.

10. Strive towards Excellence in all sphere of Individual & Collective activity.

11. Parents to provide opportunity for education to their children between age of 6 to 14 years

87. Fundamental Duties are applicable only.....

Ans: Indians

88. Fundamental Duties are.....

Ans: Not Justiciable / Not legally enforceable

89. Fundamental Duties have no sanction only.....

Ans: Perform.

90. Which Fundamental Duty is recently added?

Ans: 11th Fundamental duty recently added in 86th amendment- 2002



VTU
Updates

MODULE -3

UNION EXECUTIVES

Parliamentary System, Federal System, Centre-State Relations. Union Executive – President, Prime Minister, Union Cabinet, Parliament - LS and RS, Parliamentary Committees, Important Parliamentary Terminologies. Supreme Court of India, Judicial Reviews and Judicial Activism.

1. Who is the head of the constitution OR Who is the Nominal head of the Government?

Ans: President of India. Article-52-53

2. Who is real head of the Central Govt. OR Who is the real executor of the parliament?

Ans: Prime Minister

3. What is the minimum age is required to contest in President Election?

Ans 35 Years

4. Who will elect the President of India?

Ans: The members of Parliament (members of Lok Sabha & Rajya Sabha), Members of Legislative Assembly of States (MLA's)

5. President of India is elected or nominated or appointed?

Ans: Elected

6. The election method of President is called.....

Ans: Electro College system OR Proportional representation (Single transferable Vote)

7. What is term of the president?

Ans : 5 years

8. Which method will be used to removal of president?

Ans: Impeachment

9. What are reasons for Impeachment?

Ans: Proven misbehavior and inefficiency / in capacity.

10. What is the prior notice period for Impeachment?

Ans: 14 Days.

10.A What are the main functions of the President?

Ans: a) He is the head of India republic

aa) President nominates 2 members to Lok Sabha & 12 members to Rajya Sabha

b) He is the supreme commander OR Chief Commander for Army forces of India

d) He appoints the Prime Minister, Judges of Supreme court & High courts,

e) He appoints the Chief Election commissioner,

f) He appoints the Governors to all the states,

g) He appoints Ambassadors to Foreign Countries

i) He appoints the Chairman and members for UPSC

j) Union territories directly administered by President

l) All types of emergencies declared by President of India

11. Who is the chief commander for Army forces?

Ans: president of India

12. Who will give oath / Pledge to president of India as per Article 60 ?

Ans: Chief justice of Supreme Court.

13. Who will appoint the Prime Minister and Ministers as per the constitution?

Ans: President of India

14. Who will give the pledge to Prime Minister & Ministers?

Ans: President of India

15. What are the functions / powers of the President?

Ans : 1. Legislative Functions 4. Judicial powers.
2. Executive functions 5. Military powers
3. Financial powers 6. Emergency powers

16. What is called "VETO-POWER"?

Ans: No bill can become law without the assent of the President, he can withhold a bill this power is called VETO power

17.. Who will administer the Union Territories?

Ans : President of India

18. How many members nominated by the President to Lokasaba?

Ans: Two members, belongs to Anglo Indian Community.

19. How many members nominated by the President to Rajyasaba?

Ans: 12 members, who are experienced in various fields.

20. Who will declare the emergencies?

Ans: President of India.

20.. Resignation letter of President will be given to...

Ans: Vice president of India

22. Who will elect the Vice-President of India?

Ans: Members of Lokasaba and Rajyasaba .

23. Who may remove the Vice President of India?

Ans: Members of Lokasaba & Rajyasaba.

24. Who will act as president in the absence of the President?

Ans : Vice president of India.

25. Who will be the Chairman OR Ex-officio Chairman to Rajyasaba?

Ans: Vice-President of India.

26. Who will preside the Rajyasaba meetings?

Ans: Vice President.

27. Who shall be the Prime Minister **Article 74 & 75**?

Ans: Leader of Majority party will be the Prime Minister.

28. Can Prime Minister Dissolve the Lokasaba

Ans: Yes Power to Dissolution of Lokasaba, If no Confidence

29. Who is the Chairman for planning commission?

Ans: Prime Minister.

30.. Who is leader / real head of the parliament/ Government?

Ans: Prime Minister

30.. Ministers are responsible to....

Ans: Ministers are Individually responsible to prime minister and collectively responsible to Lokasaba

31.. Who are the Link / bridge between president and Ministers?

Ans: Prime Minister.

32.. Who is head of Cabinet and presides Cabinet meeting in Lokasaba?

Ans : Prime Minister.

33. Who may be Cabinet Ministers?

Ans: Senior and experienced ministers will be the cabinet minister

34. How many houses in the parliament?

Ans: Two Houses, Lokasaba & Rajyasaba.

35. What are other names for Lokasaba & Rajya Saba?

Ans: Lokasaba (Lower house & House of People).

Rajyasaba (Permanent House, & Upper House, house of elders)

36. What is the maximum strength of Lokasaba?

Ans: 552 members (530+20+2)

37. How many members elected by the state to Lokasaba?

Ans : 530 members

38. How many members elected by the Union Territories to Lokasaba?

Ans: 20 members

39. What is the minimum age to contest Lokasaba election (MP)?

Ans: 25 years

40. What is the minimum age to contest in Rajya saba election?

Ans : 30 years.

41. What is the maximum strength of Rajya Saba?

Ans: 250 members. (238 +12)

42. How many members nominated by the President to Rajyasaba?

Ans: 12 members

43. Who will elect the Speaker & Deputy Speaker of Lokasaba?

Ans: members of Lokasaba among themselves.

44. What is the term of Lokasaba speaker & Deputy Speaker?

Ans: 5 Years

45. When Lokasaba term will be extended from 5 years to 6 years?

Ans: During the emergency period

46. What is the term of Lokasaba / Lokasaba member (MP)

Ans: 5 years.

47. Who will decide whether a bill is Financial / Money bill or Ordinary bill?

Ans Speaker of Lokasabsa

48. Who will decide who shall speak first in the Assembly?

Ans: Speaker of Lokasaba.

47-A. Who discharges the duties of the President in the event of President and vice –President being not available?

Ans: The Chief Justice of India

49. Who presides the joint session of Lokasaba?

Ans: Speaker of Lokasaba

49-A) Who presides over the Loksaba meetings in the absence of Speaker & Deputy Speaker?

Ans:- The senior most member of the Loksaba.

50. Which is the First session of Lokasaba?

Ans: Budget session

51. How many sessions to be conducted in a year in Lokasaba as per the Constitution?

Ans: two sessions compulsory.

52. What is the minimum Gap between Two Sessions?

Ans: Not more than 6 months.

53. If parliament not in session, is president can issue an Ordinance?

Ans : Yes, President can issue Ordinance, but it should be ratified by the parliament within 6 weeks.

If not ratified by the parliament it will be considered NULL & VOID.

PARLIAMENTARY COMMITTEES

54. How many Committees in Lokasaba?

Ans: Approximately 33 committees are in Lokasaba

55. Write the kinds parliamentary committees?

(1) Standing Committees, (Permanent)

(2) Ad -hoc Committees (Temporary)

57. What is the Standing in Parliament?

(1) Committees on Estimates

(2) Public Accounts, and

(3) Public Undertakings.

58. Who will elect the members of parliament committees?

Ans: 1. Some of the committees are elected by the Members on the basis of proportional Representation or Single transferable Votes.

2. And some of the committees are nominated by Rajyasaba / Speaker.

59. What is the maximum Members in Public accounts committee?

Ans : Maximum 22 members, (15 from Lokasaba –single transferable vote/ proportional representation and 7 members nominated by Rajyasba

60. How many members may be in Estimate Committee?

Ans: Not more than 30 members

61. What is the term of the members of Estimate committee?

Ans: 01 year

62. How many maximum Members in Public under takings committee?

Ans : Maximum 22 members, (15 from Lokasaba –single transferable vote/ proportional representation and 7 members nominated by Rajyasba.

63. Write the names of Public Undertakings.

Ans: industrial Finance Corporation, Industrial Develop Bank of India, Indian Airlines, LIC, Food Corporation of India, Air India etc.

64. What is the term of the members of Public under takings committee?

Ans: 01 year

65. How many Members are in SC/ST Welfare committee?

Ans : Not more than 30 members, (20 from Lokasaba –single transferable vote proportional Representation and 10 members nominated by Rajyasba.

66. What is the term of the members SC/ST Welfare committee?

Ans: 01 year

67. How many exclusive committees in Rajyasabha?

Ans: 06

68. What are the Rajyasaba exclusive committees?

- Ans: a) Committee on subordinate Legislation e) House committee
b) Committee on Government Assurances f) General Purpose Committee
c) Committee on Papers aid on the Table g) General Purpose Committee
d) Rules Committee

SUPREME COURT Article 124

69. When & where supreme court of India Established?

Ans : 1950. At New Delhi.

70.. How many Judges in the Supreme Court includes chief Justice?

Ans: 26 Judges (01 Chief Justice + 25 other Judges)

71. Who will appoint the Supreme Court Judges?

Ans: President of India with recommendation of the Union Cabinet. (Collegium Committee)

72.. What is the retirement age for Supreme Court judges?

Ans: 65 years

73. Which method will be used to removal of a Supreme Court Judge?

Ans: Impeachment.

74. What is the prior notice period for Impeachment?

Ans: 14 days

75. Who will give Oath / Pledge to Supreme Court Judge?

Ans: President of India

76 .Who is the Guardian of Fundamental right?

Ans: Supreme Court.

77. What is the meaning of judicial review?

Ans: Reviewing the laws passed by legislature

78. Which body is having right to review the new legislation?

Ans: Supreme Court

79. What are the Powers & Functions of the Supreme Court?

- Ans: 1.It is a Guardian of Fundamental rights 5.It has Original Jurisdiction
2. Enforcement of Fundamental Rights 6. It is Appellate Jurisdiction
3. Defender of the Federation 7. Advisory Jurisdiction
4. Judicial Review 8. The court of Records

80. Highest Law making Body in India.....

Ans: Supreme Court

81. Which is the Final appellate Jurisdiction?

Ans: Supreme Court.

82.. Who may interrupt the Constitution of India?

Ans: Supreme Court

83. What is the Abbreviation of PIL?

Ans: Public interest litigation

84. The Resignation letter of Supreme Court judges addressed to....

Ans: President of India.

85. What is the eligibility to become Supreme Court Judges?

Ans: a) Must have served as the Judge in a High court at least 5 years.

b) Must have experience as an advocate of a High Court for 10 years.

86. Who will directly administer the Union Territory?

Ans: President of India.

87. The Council of Ministers should not more than.....% total strength of Lok Sabha?

Ans: 15% from total members of Lok Sabha (MP's) As per 91st amendment -2003

88. How many Rajya Sabha members will be retired every 2 years?

Ans: 1/3 of Rajya Sabha members.

89.. The President of India has to give his Resignation letter to.....Ans: Vice-President of India.



VTU
Updates

MODULE -4

STATE EXECUTIVES, ELECTIONS, AMENDMENTS AND EMERGENCY PROVISIONS:

STATE EXECUTIVES:- Governor- Article 153, Chief minister, ministers, state cabinet, state legislatures, High court and subordinate courts, special provisions (article 370, 371, 371j) for some states.

90. Who is the nominal head of the State Government?

Ans: Governor Article 153.

91. Who appoints the Governor to the States?

Ans: President of India

92. The Governor should not be a person from

Ans: Same State.

93. What is the minimum age is required to contest in governor elections?

Ans: 35 years

94. What is the term of a Governor?

Ans: 5 years

95. Can a governor act as a Governor for more than One state?

Ans YES

96. Can a Governor Transfer from one state to another state?

Ans: YES

97. How many persons nominated by the governor to Legislative Assembly belongs to Anglo Indian Community?

Ans: One Person belongs to Anglo Indian.

98. Who will give the Oath / Pledge to the Governors?

Ans: President of India.

99. Is the Governor has VETO Power?

Ans: Yes (All new legislation should be signed by Governor, He can hold the bill in his Office)

100. The Governor holds office during pleasure of?

Ans: President of India

101. Who will appoint the Chief Minister & Ministers of the state as per the Constitution?

Ans: Governor.

102. Who will give Oath / Pledge to the Chief Minister & Ministers of the State?

Ans: Governor.

103. Who will appoint the chairman & Members for the Public service commission of the State?

Ans: Governor of the State.

104. Without the Signature / consent of the Governor of the State no bill can become....

Ans: Law, (Governor has VETO power- he can hold the bill for clarification,)

II. CHIEF MINISTER, LEGISLATIVE ASSEMBLY & LEGISLATIVE COUNCIL-Art 168

105. Who shall be the Chief Minister of the state **Article -164?**

Ans: Leader of the majority party.

106. Who is the chain/link/bridge between minister and Governor?

Ans : Chief Minister.

107. Who is the real executive of the state?

Ans: Chief Minister.

108. Who Presides the Cabinet meetings of the Legislative Assembly?

Ans: Chief Minister.

109. Who have the power to appoint or change new ministers in the State Government?

Ans: Chief Minister.

110. Who is the leader of the Legislative Assembly?

Ans : Chief Minister.

111. What is the minimum and maximum strength of a legislative assembly?

Ans: Minimum 130 members & Maximum 500 members.

112. What is the minimum age required to contest in Legislative Assembly election (MLA)?

Ans: 25 Years.

113. What is the bicameral system of Government?

Ans: Two houses in the Government is called Bicameral

114. What is unicameral system of Government?

Ans: One house in the Government is called uni-cameral (Only Legislative Assembly in a State)

115. What are the two houses of the Government?

Ans: Upper House & Lower House (Legislative Assembly & Legislative Council)

116. How many states are having Unicameral Government?

Ans: 22 States

117. How many states are having Bi-cameral Government?

Ans: 7 States only.

118. What is the term of Legislative Assembly / Legislative Assembly member?

Ans: 5 years.

119. How many members nominated by the governor to the legislative council?

Ans: 1/6 members nominated by Governor to legislative council.

120. Explain the composition of Legislative Council?

Ans: 1/3 members are elected from Local bodies. (Municipality, District board)

1/3 members are elected from members of Legislative Assembly- (by MLA,s)

1/12 members are elected by the Graduates from Graduates Constituency.

1/12 members are elected by the Teachers from Teachers Constituency.

1/6 members are nominated by Governor (From the Field of Art, Science Service etc,

121. What are the other names for legislative council?

Ans: Upper house, Permanent house or house of elders

122. What is the term of legislative council member? (MLC)

Ans: 6 years.

123. How many members in the legislative council?

Ans: Minimum 40 and not more than 1/3 members of (MLA's) Legislative Assembly

124. Where can be a financial bill / Money bill discussed?

Ans: Only in Legislative Assembly.

125. What is the minimum age is required to contest in legislative council election (MLC) ?

Ans: 30 years.

126. Speaker of legislative Assembly is elected by...

Ans: Members of legislative Assembly (MLA's)

117. What are the duties / functions of a Speaker?

Ans: a) Speaker decides who shall speak first in the Assembly

b) Speaker presides the joint session of Legislative assembly

c) Speaker decides whether a bill is money bill or ordinary bill.

128. What is the term of a speaker?

Ans: 5 years

129. Who may be removed Speaker of Legislative Assembly from his post?

Ans: Members of Legislative Assembly.

130.. How many sessions to be conducted in a year by the legislative assembly ?

Ans: 2 sessions (Rainy & Winter session)

131. What is the gap between two sessions?

Ans: not more than 6 months

132. Which is the first session of the Legislative assembly?

Ans: Budget session.

133. Which bill cannot originate in Legislative Council?

Ans: Money bill or financial bill

HIGH COURTS OF THE STATE

134. Who will appoint the High court Judges?

Ans: President of India (in consultation with Governor of the state & Chief Justice)

135. What is the retirement age for High court judges?

Ans: 62 years.

136.. Whether High court Judges can transfer from one state to another state?

Ans: YES

137. Who is having power to Establish common High Court for more than one state?

Ans: Parliament

138. What is the method will be used for dismiss / removal of High court judges?

Ans: Impeachment.

139. The resignation letter of a High court judge should be addressed to...

Ans: president of India.

140.. Under which article High court can issue Writ petition?

Ans: Article 226 of the Indian Constitution.

141. What are the qualifications required for High court judges?

Ans: a) he must have served as a judge for five years

b) he must have been an advocate of a High court for 10 years.

142. What are the subordinate courts?

Ans: 1. District Courts (District Civil Court & Session Court

2. JMFC Courts (Judicial Magistrate Courts in Taluk Level

143. Which Court control over the subordinate courts in a State?

Ans: High court

144. Who will appoint the District Judges?

Ans; District judges are appointed by the Governor in Consultation with Chief Justice of High Court.

145..Who will decide the posting, promotion of judicial officers of the subordinate Courts?

Ans: High court

146. What are powers & functions of High court?

Ans: 1. Protection fundamental Right (Article-226)

2. Original Jurisdiction.

3. Appellate Jurisdiction (Both Civil & Criminal Cases)

4. Court of Records

5. Control over Subordinate courts.

ARTICLE 370, 371 & 371J

148. . Which part of the constitution drafted /define the Article 370

Ans Part XXI

149. Which Article provide the special status to Jammu & Kashmir

Ans: Article 370

150. Which article provide the special provision to the states of Maharastra& Gujarath

Ans: Article 371

151. Which article made to establish separate development board for Vidarba, Marathwada in Maharastra ?

Ans Article 371

152. Article 371 made to establish separate development board for.....

Ans: Saurashtra and Kutch in Gujarath

153. Which amendment added the Article 371 J to the Constitution?

Ans: 98th Amendment act-2012

154. Which article made to establish separate development board for Hyderabad karnataka ?

Ans: Article 371 J

155. Which article empowered to provide the Governor of Karnataka to have special responsibility on Hyderabad Karnataka?

Ans Article 371 J

156. How many backward districts includes in Northern Karnataka range in Article 371-J

Ans: Six backward districts covered in northern Karnataka in Article 371 J, Gulbarga, Bidar, Raichur, Koppal. Yadagiri and Bellary

ELECTION COMMISSION, ELECTIONS, ELECTORAL PROCESS IN INDIA

1.. Which Article deals with electoral process?

Ans: **Article 324 of Indian Constitution.**

2. Which machinery conducts election in India?

Ans: Election Commission.

3. The Election commission is known as...

Ans: Multi member commission.

4. How many members are there in Election Commission?

Ans: Three Members.

5. In which basis Elections are conducted in India?

Ans: Adult franchise (18 years of age completed)

6. When the general election held in India?

Ans: 1951-52

7. Who will appoint the Chief election Commissioner?

Ans: President of India under the recommendation of Cabinet.

8. What is the tenure / term of Chief election commissioner?

Ans: 6 years

9. The Election commission will not conduct election for

Ans: Speakers of Lok Sabha and Legislative Assembly.

10. Which Party system adapted in India?

Ans: Multi party.

11. Which method will be used for removal of Chief Election commissioner?

Ans : Impeachment.

12. How many days will be allowed to file Nomination for election?

Ans: 8 days

13. How many days were allowed to withdraw the nomination?

Ans: 02 days from the date of filing.

14. How many days were allowed for election campaign?

Ans: 14 days (2 weeks)

15. Within how many days , candidates have to submit accounts to election commission?

Ans: 30 days after election

16. Election in India are conducted on the basis of.....

Ans: Adult franchise

17. Explain the process of election in India

Ans: a. Delimitations of constituencies (General OR reservation)

b. Notification of elections (after receiving recommendation by President & Governor

c. Notification for filing Nomination

d. Filing of nomination by willing candidates for election

e. Verification and acceptance OR rejection of Nomination

f. Election campaign

g. Voting / Polling process (through EVM OR Ballot)

h. Counting of votes/ announcement of results.

18. What are the criteria to decide a political party is national party or Regional Party?

Ans: **National party:** If a party is recognized in 4 or more states and should involve in political Activities past from continues 5 years.

19. What are powers and functions of the Election Commission?

a) Preparation of electoral rolls

b) Revision of electoral rolls

- c) Allotment of seats during the Election for (MP & MLA, ZP, GP Corporation Election)
- d) Granting of recognition to Political parties (National party or regional party)
- e) Allotment of symbols to new political parties
- f) Ensuring free & fair elections
- g) To prescribe code of conduct for political parties
- h) It decides the disputes pertaining to election symbols
- i) It settles election disputes and petitions referred by President of India Or Governor of a State
- j) It advises to the President of India OR Governor of a state questions related to disqualifying of Candidate
- k) it has the powers and duty to disqualify a candidate, If he fails to submit Election accounts within the prescribed time to Election Office
- l) It has the power to Impose ceiling on the election expenses of the political parties.

II. AMENDMENTS, METHODS AND IMPORTANT AMENDMENTS

20. Which article deals with amendments procedure?

Ans: Article 368

21. From which country's constitution amendment procedure adopted or borrowed?

Ans: South Africa

22. Which are the procedures to be followed for amending the constitution?

Ans: Three procedures

1. Amendment by simple majority
2. Amendment by special majority- 2/3 majority
3. Amendment by special majority with Acceptance / ratification by half of the states

23. What is called special majority of amendment?

Ans : Amendment Resolution should be accepted by 2/3 members present in the house

24. What is simple majority amendment?

Ans: Amendment Resolution should be accepted by at least 50% of members present in the house

25. What are the rules/ issues can be amended by simple majority?

- Ans:
1. Change name and boundaries of a state
 2. Creation or abolition of Legislative house in a state.
 3. Changes Salary & allowances of President, Governor, Judges, etc

26. What are the rules / issues can be amended by Special majority of amendments? With Example.

- Ans:
- a) Changes / Alter in Fundamental rights.
 - b) Changes in Directive Principles of State policies and List of concurrent

27. What are the issues can be amend in Special majority of amendments?

- Ans:
1. Changes in election method of President of India
 2. Extension of the Executive powers of the Country
 3. Any Changes in Subject related on Supreme Court or State High courts

28. Which is the first Amendment act?

Ans: 1951.

29. What is 7th Constitutional Amendment Act-1956? What are the Changes made?

- Provided for the establishment of a common high court for two or more states.

- Abolished the existing classification of states into four categories i.e., Part A, Part B, Part C and Part D states, and reorganized them into 14 states and 6 union territories
- Extended the jurisdiction of high courts to union territories.
- Provided for the appointment of additional and acting judges of the high court

30. What are the Amendments made during 9th Amendment 1960?

Ans : Settled certain boundary disputes between India and Pakistan relating to the borders of the States of Assam, Punjab, West Bengal, and the Union territory of Tripura.

31. What is the Amendment made during 10th Constitution amendment 1961?

Ans : President to "make regulations for the peace, progress and good government of the territory".

32 What is the Amendment made during 12th Constitution amendment 1962?

Ans: Incorporated Dadra and Nagar Haveli in the Indian Union

33. Which is the lengthiest amendment in the constitution?

Ans: 42nd Amendment-1976 (it is also called as a Mini Constitution)

34. What are the amendments made in 42nd Amendment 1976?

Ans: The following amendments made in the 42nd Amendment-1976

- A) Three new words added to the Constitution, "Socialist-Secular & Integrity)
- B) Fundamental Duties added Part-IV-A in the Constitution
- C) Duration of Lokasaba and Legislative assembly increased by 5 years to 6 years
- D) Duration of State emergency (Article-356) increased upto One year instead of six months
- E) Protection & Improvement of environment, forest & wild life added to Directive Principles of State policy (DPSP)
- F) Providing of Free legal Aid services to Poor family
- G) Participation of workers / labors in management of Industries
- H) Made the president bound by the advice of the cabinet

35. What are the Amendments made in 44th Amendment-1978?

Ans: a) Right to property was deleted

- b) Reduced the duration of Lokasaba and Legislative Assembly from 6 year to 5 year
- c) Reduced the term of President Rule/state emergency) Art-356 from 1 year to 6 month
- d) "Armed rebellion" word inserted instead of "Internal disturbance" in Article-352
- e) Made the President to declare a national emergency only on the written recommendation of the cabinet.

36. What is the Amendment made during 61st Amendment -1988?

Ans : Reduced the voting age of elections to the Lokasaba and Legislative Assemblies of states from 21 years to 18 years.

39. What are the Amendments made during 73rd Amendment -1992

Ans: Introduced Local self government (Zilla Panchayath, Taluk Panchayath & Grama Panchayath) for this purpose, the Amendment has added a new Part-IX entitled as 'the panchayats' and a new 11th (Eleventh Schedule } containing 29 functional items of the panchayat

37. What are the Amendments made in 74th Amendment1993?

Ans: a) Introduced Municipalities, corporations, in urban areas.

- b) Added 12th schedule to Indian Constitution

38.. What are the Amendments made in 75th Amendment1994?

Ans: Provided for the establishment of rent tribunals for the adjudication of disputes with respect to rent, its Regulation and control and tenancy issues including the rights, title and interest of landlords and tenants

39.. Explain what is the Amendment made during 86th Amendment-2002?

Ans: a) Make the Right of education of children from the age 6year to 14 year as a Fundamental right.

b) Directed to all State Governments to provide free and compulsory education to all 6 to 14 year.

Fundamental duty of a parents “They should provide education from the age 6 year to 14

40. What are the Amendments made in 91st amendments-2003?

Ans: a) As per this amendment “The total number of Ministers include Prime Minister shall not exceed 15% Total members in Lokasaba

b) As per This amendment “The total number of Ministers include Chief Minister shall not exceed 15% total members of Legislative Assembly in a state”.

41. What are the Amendments made during 94thAmendment -2006?

Ans: Made provisions for the appointment of a Minister in charge of tribal welfare in the states of Chhattisgarh and Jharkhand.

42. What is the amendment made during 95th Amendment 2009?

Ans: Extended the period of reservation of seats for the Scheduled Castes and Scheduled Tribes and representation of the Anglo-Indians in the Lokasaba and the State Legislative Assemblies for another ten years, i.e. up to 26 January 2020.

43. What is 100th Amendment-2015 made for the Constitution

Ans: This amendment is Land Boundary Agreement (LBA) between India and Bangladesh

44. In which year the 101th Amendment made for the Constitution

Ans: 8th September, 2016

45. Which Bill was passed in 101st amendment 2016?

Ans: GST (Goods Service Tax) bill was passed.

46. When the 118th Amendment Bill passed in Karnataka Legislative Assembly & Council?

Ans: March-2012

47.. What is the amendment made during 118th Amendment 2012

Ans: A) The Bill seeks to insert Article 371J in the Constitution to empower the Governor of Karnataka to take Steps to develop the Hyderabad-Karnataka Region.

b) The Region includes the districts of Gulbarga, Bidar, Raichur, Koppal, Yadgir and Bellary.

The President may allow the Governor to take steps for development of the region

48. When the 118th amendment resolution introduced in Lokasaba?

Ans: September -7, 2012

EMERGENCY PROVISIONS

49. Which part of the Constitution deals with emergency provisions?

Ans: Part-XVIII (Article-18)

50. Who is having power to declare OR Proclaim Emergency?

Ans: President of India

51. How many Types of Emergencies as per Constitution?

Ans: Three types

52. Write the Names with Articles of three Emergencies?

- Article-352 -National emergency
- Article-356-State Emergency OR President Rule
- Article-360 Financial emergency

53. Which are the grounds (reasons) for the declaration of National Emergency?

Ans: War – External Aggression

54. In which Amendment Act “Internal disturbance” is substituted to “Armed Rebellion”?

Ans: 44th Amendment Act-1978.

55. Which word is substituted internal disturbance?

Ans: Armed rebellion

56. Who decide for the declaration of National emergency?

Ans: Union Cabinet

57. Which majority is required for the declaration of Emergency?

Ans: Special majority ($\frac{2}{3}$ rd)

58. Initially the duration for the national Emergency isMonth

Ans: ONE month

59. What is the maximum period for National Emergency?

Ans: One year (Every six month it has to be renewed by the both houses)

60. If Lokasabha not in session, then who will declare for the National Emergency?

Ans: Rajya Sabha

61. Which majority is required for revoke of National emergency?

Ans: Simple majority ($\frac{1}{2}$)

62. Which is the ground for the declaration of State Emergency / President Rule?

Ans: a) When Constitutional machinery fails in a State Government

b) If a State Government cannot administer according to the Constitution

63. Who will recommend for the declaration of State Emergency / President Rule in a State?

Ans: Governor of the State

64. Who declare the State Emergency?

Ans: President of India by the recommendation of governor and Union Cabinet

65. Initially period for State Emergency OR President Rule

Ans: Two months (2 Months)

66. The maximum period of State Emergency?

Ans: Three years (3 years)

67. Which is the ground for the declaration of financial emergency?

Ans: a) If Financial instability in the Country OR Part of the Country

b) If, Credit of India is threatened

68. Initially financial emergency declared for a period of.....

Ans: One month (1 month)

69. The maximum period the declaration of financial Emergency is.....

Ans: In definite OR until it revokes

70. So far how many times, National Emergency declared in India?

Ans: Three times 1) War with China-1962,

2) War with Pakistan-1971,

3) Internal disturbance-1975,

71. When emergency should renew after the initial period?

Ans: Can be renewed after six months, from both Houses.

72. What are the Consequences during Financial emergency period?

Ans: The President may issue a direction for reducing the Salary & allowances of all Central and State Government employees, including the Salary of Judges of Supreme court & High courts.



VTU
Updates

MODULE-5

PROFESSIONAL ETHICS

Professional Ethics - Positive and Negative Faces of Engineering Ethics, Profession, Professional Responsibility. Clash of Ethics, Conflicts of Interest. Responsibilities in Engineering Responsibilities in Engineering the impediments to Responsibility. Trust and Reliability in Engineering, IPRs (Intellectual Property Rights), Risks, Safety and liability in Engineering

1. What is Professional Ethics?

Ans: Professional Ethics is concerned with ones conduct or behavior in the process of carrying out the Professional work. Each profession has its own ethics.

2. What are the Aims and objectives of Engineering Ethics for Engineers?

- To strive for professional excellence while acting as a professional expert in one's field.
- To disseminate quality technical education and training to the budding technocrats.
- To pass on the benefits of knowledge, skill and expertise to the society, particularly to the class of engineers.
- To balance the needs of the profession and the demands of the society as well as the World of industry and technology.
- To follow moral values and conduct in relations with fellow professionals, other technocrats and the society at large.
- To remain self-motivated as well as to motivate others.

3. Write the Types of Responsibility?

Ans: Moral and Legal Responsibility

Responsibility in respect of Dereliction of Duties.

Responsibility for reckless behavior/action.

4. What are the Attitudes towards Responsibility ?

Ans: 1. The Minimalist Attitude towards responsibility:

2. Responsible-care attitude.

3. Good-work Attitude.

5. What are the Impediments to Responsibility: of Engineers?

- Self-interest:
- Self-deception:
- Fears, Distrusts and Threats
- Ignorance:
- Lack of sources of information.
- Lack of perseverant
- Egocentricity and Egoism:
- Microscopic vision:
- Over-confidence:
- Group behavior / Thinking

6. What is the meaning of Honesty ?

Ans: Honesty means the quality of being honest , truthful, fair and straight-forward in conduct and expression.

7. What are the two Key Dimension in Honesty

Ans: Truthfulness and Trustworthiness

8. Write the ways of Misusing the truth by Engineers?

- Ans:
- a) Lying
 - b) Deliberate deception
 - c) Withholding information
 - d) Hiding of Information.
 - e) Failure to Seek Truth.
 - f) Revealing confidential information
 - g) Allowing one's Judgment to be corrupted

9. What is Integrity?

Ans: The terms which are used to describe 'integrity is truthfulness, honesty, Soundness, wholesomeness, probity, Unadulterated and undivided slate.

Integrity of Engineers involved in Research and Design Work

10. Which are the unethical and illegal acts should not involve by Engineers in Research & Development (R &D) work?

- Ans:
- a) Unreal Authorship.
 - b) Trimming
 - c) Cooking
 - d) Forging
 - e) Plagiarism

INTELLECTUAL PROPERTY RIGHTS (IPR)

12. Describe Integrity in the use of IPR

- 1) **Patents:-**Documents issued by Govt. agencies, that allow the owners of the patent to Exclude others from making use of patented information for a period of 20 years.
- 2) **Industrial designs:-**A design or concept including the features, shapes, configuration, Pattern, Colors
Ex: TV, textiles, footwear etc.
- 3) **Trademarks:-**are words, phrases, designs, sounds or symbols. **Ex:** Coca cola, Pepsi
- 4) **Copy Rights:-**are create products, such as books, pictures, graphics, sculpture, Music, movies, computer programs etc. **Ex:** Text books, Movies, Stories etc,
- 5) **Geographical Indications:-**Identifying goods as originating in the territory of a Country OR a Locality. **Ex:** Assam Tea, Mysuru Silk etc.
- 6) **Integrated circuits:** Designing of Integrated circuits used in a variety of electronic instruments, it involves a high degree of intellectual activity.
- 7) **Trade secrets:** are Patterns, Devices OR Competitions of Information's, that are used in business to gain an advantage over competitions. **Example:** Formula of Soft Drink etc.

12-A. How many year an Author can retain copy Rights?

Ans: 50 years

14. How many years a patented information can be hold?

Ans: 20 years.

15. Give examples for Industrial designs in IPR

Ans: Television, Test Tiles, Foot ware etc,

16. Give examples for Copy rights in IPR?

Ans; Books, Pictures, Graphics, Music, Computer-programs.

17. Give examples for Trade secrets in IPR?

Ans: Words OR Phrases, designs sound or symbols.. example: Coca cola, Pepsi etc

18. Write examples for Geographical indications in IPR?

Ans: Assam Tea, Mysore Silk.

19. Give examples for Trade secrets in IPR?

Ans: Formula of soft drink- Taste of Coke, Pepsi etc

20. Write Types of risk involved in Engineering Profession?

- Voluntary and Non-voluntary or Involuntary Risks.
- Short-term Risks and Long Term Risks
- Risk with reversible effects and Risks with irreversible effects
- Threshold levels of Risks.
- Job-related Risks.
- Delayed vs. immediate Risk
- Expected probability

21. What are the Responsibility of Engineers for Safety of Design, Products, Public, Workers and Industry

Ans: 1. While designing a product, the engineers must comply with all public laws and policies.

2. They must follow all legal standards in respect of the designs being developed.

3. They should be technically sound and have full knowledge of engineering standards.

4. Engineers must try to create more and more safe designs and products.

5. They must make public all possible risks involved in their designs.

6. They must make their design and products eco-friendly.

7. They must always be ready for accepting improvements in their designs.

22. What are the Factors increase the Chances of Risk

Ans: (i) Faulty Design and Process

(ii) Faulty Products

(iii) Hasty production and mass production

(iv) Careless-ness towards Quality Control

(v) Faulty Operating Procedures,

(vi) Lack of clear instructions for the users

(vii) Lack of Expertise on the part of the producer of goods

(viii) Inadequately trained manpower.

23. What are the 4 types of Fundamental Virtues?

Ans: a) Wisdom b) Temperance c) Fortitude d) Justice

24. The Personal ethics is deals with.....

Ans: How we treat others in our day to day lives, these principles are applicable to ethical situations

that occur in business and engineering

25. What are the core qualities of professional practitioners required?

- Ans: 1. Integrity-Opens & honesty,
2. Independence- to be free of secondary interests with others
3. Impartiality- to be free of bias
4. Responsibility
5. Competence
6. Discretion

26. Explain the code of Ethics of engineers?

- Ans: a) respect the rights of others
b) Show fairness in dealings with others
c) Be honest in all actions
d) Keep promises and contracts
e) Consider the welfare of others
f) Show compassion to others

27. What are procedures to be followed to solve the Ethical Conflicts?

Ans: **1. Internal appeal options**

- A) Individual Preparations
a) Maintain records of the event with details
b) Examining the company's internal appeal process
c) Be familiar with the Laws that protects engineers
d) Identify alternative courses of action
B. Communicate with immediate supervisor
a) Initiate informal discussion
b) Make formal written appeal
c) indicate intention of starting internal process of appeal

2. External appeal options:

A. Individual actions B. Contact Client C. Contact media

28. What are the Types of Inquiry?

- Ans: a) Normative inquiry
b) Conceptual Inquiries
c) Factual Inquiries

IMPORTANT MCQ QUESTIONS & ANSWERS (See BOLD one for Answers)

1. Engineers can use codes of ethics as guide lines to

- Ans : **A) Resolve the Conflicts** b) Formulate the problems
c) Shift responsibility d) Overcome work pressure

2. No code will give _____ to get solution for ethical problems

- Ans: **a) Guide lines** b) Set of Ideas c) An algorithm d) Ethical standards

3. Corrupt professional judgment leads to

- Ans: a) Integrity in R&D **b) Conflict of Interest**
c) Reliability d) None of these

4. Fear is _____ to Responsibility

Ans: a) A Way of Shift **b) An Impediment**
c) A way of Corrupt d) None of these

5. Stealing of Intellectual property means

Ans: a) cooking b) Forging c) Trimming **d) plagiarism.**

6. This is one type of attitudes of responsibility of engineers

Ans: **a) Minimalist view** b) Reasonable care c) Good –works d) none of these

7. Which one is not an Impediment to responsibility?

Ans: a) Group-Think b) Microscopic vision
c) Trade mark d) Ego-centric Tendencies

8. This is not Impediment to responsibility

Ans: a) Self-deception **b) Self respect** c) Ignorance d) Fear

9. The Formula of soft drink is an example of

Ans: **a) Trade secret** b) Trade mark c) Patent d) Copy right

10. Which of the following no depict the attitude towards the responsibility?

Ans: a) Minimalist b) Reasonable care **c) Protest** d) Good works

11. Which one is not the way of misusing truth?

Ans: a) withholding information b) deliberate deception
c) patenting d) none of these

12. The owner of patent can retain his patent rights for

Ans: **a) 20 years** b) 50 years c) 30 years d) 100 years

13. The professional ethics deals with

Ans: **a) Ethical standards accepted by the professional community**
b) legal standards c) Business aspects d) official matters

14. Which is not dishonesty in engineering R & D?

Ans: a) cooking b) Forging **c) Rolling** d) Trimming

15. Fear is to Responsibility?

Ans: a) Designs b) Symbols c) Sounds **d) Good will**

16. The use of intellectual property of others without their permission is

Ans: a) forging b) Cooking c) trimming **d) Plagiarism**

17. These are not Trade secrets

Ans: **a) Principles** b) Patterns c) Formulas d) Devices

18. Ignorance as a hindrance to responsibility is not due to

Ans: a) Over confidence **b) Lack of imagination**
c) Pressure of deadliness d) Fear

19. Minimalist view means

Ans: a) A ministerial view **b) A narrow thinking**
c) A concept of Responsibility d) A novel plan to minimize industrial loss

20. Tight couple means

Ans: a) Binding two beams tightly **b) process tightly coupled**
c) Erecting two pillars side by side d) Strong adhesive material

21. Engineers first obligation towards

Ans: a) His employer **b) Public safety**

- c) Government
22. Which one is not a trade secret?
Ans: **a) Theorem**
c) Formula
- d) Clients
b) Equipment
d) Pattern
23. The code of Ethics can be taken as guidelines by the engineers to
Ans: **a) Resolve the conflicts**
b) Formulate problems
c) Overcome the work pressure
d) Escape from the responsibility
24. Engineers will solve society better, If they are informed about
Ans: **a) Morality**
b) Technical standards
c) Standards of science
d) Litigation process
25. An author retains copy rights for
Ans: a) 100 years
b) 150 years
c) **50 years**
d) 25 years
26. Plagiarism means:
Ans: a) Trespassing upon immovable property
b) Trespassing against movable property
c) **Using Intellectual property of others without their permission**
d) Misusing truth by deception
27. To overcome an impediment, uncritical acceptance, what steps an engineer has to take
Ans: a) Accept & analyze
b) **Analyze & accept**
c) Always say YES boss
d) None of these
28. Which one is not the way of misusing truth?
Ans: a) Withholding information
b) Failing to adequately promote dissemination of information
c) Deliberate deception
d) **Patenting**
29. Risk of Harm equal to probability of producing benefit is
Ans: a) inevitable risk
b) **Acceptable Risk**
c) Risk which cannot be avoided
d) None of these
30. Professional Ethics is
Ans: a) Setup rules relating to personal character of professional
b) Traditional rules observed since a long time
c) **Set up rules passed by professional bodies**
d) Set up standards adopted by professionals
31. Is Fear impediment OR Hindrance to Responsibility?
Ans: a) No
b) Yes to some extent
c) Yes & No
d) **Yes**
33. Which of the following is not an Intellectual property?
Ans: a) Copy right
b) Trade secret
c) Patent
d) **Land Property**
34. Engineers shall hold paramount the safety, health & welfare of in the performance of their Professional duties
Ans: a) Women & Children
b) **The Public**
c) The Ministers
d) Themselves

35. Intentionally causing harm is related to

- Ans: a) **Legal responsibility** b) Moral Responsibility
c) both a & b d) None of these

36. Retaining only those results that fit the theory and discarding others is

- Ans: a) **Cooking** b) Trimming c) Forging d) Plagiarism

37. The diagram of the possible ways in which, an accident occurs is represented by

- Ans a) blue print **b) Fault Tree** c) Flow chart d) None of these

38. Engineers shall undertake to perform engineering assignments only when a

- Ans: a) **Qualified by education & experience in the Technical field**

- b) They have 10 years of experience in the Technical field
c) They are adequately paid for their Jobs
d) None of these

39. Professional ethics takes in to account

- Ans: a) **The personal character of engineers** b) The temperament of engineers
c) The religious bent of mind of engineers d) The social background of engineers

40. Conflict of interest is

- Ans: a) Create tension with the employer b) corrupts
c) an impediments **d) hampers the progress**

41. A compound measure of probability and magnitude adverse effect is known as

- Ans: a) Benefit b) Compensation **c) Risk** d) Liability

RECENTLY ASKED QUESTIONS IN THE VTU EXAMINATION.

1. Cooking means...

- a) Boiling under pressure b) Retaining results which fit theory
c) Making deceptive statements d) misleading the public about quality of the product

2. Engineering ethics is a

- a) Preventive ethics b) Developing c) Natural ethics d) scientifically developed ethics

3. A Fault tree is used to..

- a) asses the risk involved b) Claim compensation c) Take free consent d) Improve safety

4. Risk of harm equal to probability of producing benefit is..

- a) Inevitable Risk b) Acceptable Risk c) Risk which cannot be avoided d) None of these

5. An Engineer may not be held legally liable or causing harm when harm is caused...

- a) Intentionally b) Ignorantly c) Negligently d) Recklessly

6. Engineers shall issue Public statement only...

- a) In subjective manner b) In objective manner
c) On their personal responsibility d) Based on the reports sent by higher officials

7. Being safe or blaming other is type of attitude of responsibility of Engineers...

- a) Minimalist b) reasonable care c) Good works d) None of these

8. To overcome an Impediment "Uncritical Acceptance" what step an engineer to take?

- a) Accept and Analyse b) Analyse and Accept c) Always say YES Boss d) None of these

9. One of the characteristics of profession is

- a) Monopoly b) Hard work c) Competition d) None of these
10. The diagram of the possible ways in which , an accident occurs is represented by
- a) Blue print b) Fault Tree c) Flow chart d) None of the above



VTU
Updates